

IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an appeal against the Judgment dated 06.04.2018 of the Provincial High Court of Negombo under Section 154(P)3b of the Constitution of the Democratic Socialist Republic of Sri Lanka.

**Court of Appeal Case No:
CA (PHC) 44/2018**

Provincial High Court of Negombo Case
No. HCRA/324/2017

M.C. Negombo Case No: 31678/66

Malkankanamalage Nevil Antony De Silva,
No. 159, Udangawa,
Kochchikade.

PETITIONER

Vs.

Hettiarachchige Don Nimal Christy
Hettiarachchi,
No. 41/3, Muruthana,
Kochchikade.

RESPONDENT

And between

Hettiarachchige Don Nimal Christy
Hettiarachchi,
No. 41/3, Muruthana,
Kochchikade.

RESPONDENT-PETITIONER

Vs.

Malkankanamalage Nevil Antony De Silva,
No. 159, Udangawa,
Kochchikade.

PETITIONER-RESPONDENT

And now between

Malkankanamalage Nevil Antony De Silva,
No. 159, Udangawa,
Kochchikade.

PETITIONER-RESPONDENT-APPELLANT

Vs.

Hettiarachchige Don Nimal Christy
Hettiarachchi,
No. 41/3, Muruthana,
Kochchikade.

RESPONDENT-PETITIONER-RESPONDENT

Before: Damith Thotawatte, J.
K.M.S. Dissanayake, J.

Counsels: Geeshan Rodrigo with Udayana Wijayawardana for the
Petitioner-Respondent-Appellant.

Anuruddha Dharmaratne with Charinda Seneviratne for the
Respondent-Petitioner-Respondent instructed by Chamath
Wickramasinghe.

Argued: 17.02.2026

Written submissions 07.04.2026 by the Respondent-Petitioner-Respondent
tendered on: The Appellants had not filed Written Submissions

Judgement Delivered: 19.06.2026

Thotawatte, J.

Introduction

The present appeal has been preferred by the Petitioner-Respondent-Appellant (hereinafter sometimes referred to as the “Appellant”) against the judgment dated 06.04.2018 delivered by the learned High Court Judge of the Provincial High Court of Negombo exercising revisionary jurisdiction under Article 154P(3)(b) of the Constitution,

whereby the learned High Court Judge set aside the order dated 31.07.2017 made by the learned Magistrate of Negombo functioning as the Primary Court Judge under the provisions of the Primary Courts' Procedure Act, No. 44 of 1979 (hereinafter referred to as the "PCP Act").

The dispute arises out of proceedings instituted under section 66(1)(b) of the PCP Act concerning the alleged obstruction of an access road claimed to be used by the Appellant. The learned Magistrate, having considered the affidavits and written submissions tendered by the parties, made an order restraining the Respondent from obstructing the disputed roadway. Aggrieved by that order, the Respondent invoked the revisionary jurisdiction of the Provincial High Court. The learned High Court Judge, by judgment dated 06.04.2018, set aside the Magistrate's order. The Appellant has thereupon preferred the present appeal.

Factual Matrix

The Appellant is the owner of a land situated at Udangawa, Kochchikade. According to the Appellant, he had been using a roadway which he claimed provided access to his property. He alleged that on or about 13.12.2016 the Respondent erected a barbed-wire fence and gate across the said roadway thereby obstructing his access.

The Appellant thereafter lodged complaints with the Police and instituted proceedings before the Magistrate's Court of Negombo by way of a petition and affidavit under section 66(1)(b) of the PCP Act. He asserted that the Respondent's conduct had resulted in a dispute affecting land and had created a situation likely to lead to a breach of the peace.

The Respondent denied the Appellant's entitlement to use the disputed roadway. His position throughout was that the roadway in question formed Lot 15 of Plan No. 1874/93, over which he possessed a right of way derived from his title deed, whereas the Appellant had failed to establish any legal entitlement to use the said roadway. The Respondent further contended that the Appellant's land was not situated adjacent to Lot 15 and that the Appellant possessed alternative means of access to his property.

Progression of Litigation

Proceedings before the Magistrate's Court

The Appellant instituted proceedings under section 66(1)(b) of the PCP Act in Case No. L/31678. Upon considering the petition and affidavit, the learned Magistrate directed notices to issue and thereafter received affidavits, counter-affidavits and written submissions from the parties.

By order dated 31.07.2017 the learned Magistrate held that there existed a dispute relating to a right of way and that there was a likelihood of a breach of the peace. The learned Magistrate further found that there existed a common right of way and that the same had been obstructed by the Respondent. Consequently, the Respondent was restrained from obstructing the said roadway.

Proceedings before the Provincial High Court

Being dissatisfied with the said order of the learned Magistrate, the Respondent invoked the revisionary jurisdiction of the Provincial High Court in HCRA No. 324/2017.

Before the learned High Court Judge, the Respondent principally contended:

- a) that the material before the Magistrate did not disclose a breach of the peace or an imminent likelihood thereof;
- b) that the learned Magistrate had failed to identify the jurisdictional facts necessary to invoke section 66 of the PCP Act;
- c) that the Appellant had failed to establish any entitlement to use Lot 15 of Plan No. 1874/93; and
- d) that the learned Magistrate had granted relief which had not been specifically prayed for.

The learned High Court Judge accepted those contentions and set aside the order dated 31.07.2017.

Reliefs Sought Before the Court of Appeal

The Appellant seeks:

- (a) the setting aside of the judgment dated 06.04.2018 of the Provincial High Court;
- (b) the restoration of the order dated 31.07.2017 made by the learned Magistrate.

Grounds of Appeal

The Appellant has substantially advanced the following grounds:

1. The learned High Court Judge failed to appreciate that the material before the Magistrate disclosed a dispute likely to result in a breach of the peace.
2. The learned High Court Judge failed to appreciate that several police complaints and counter-allegations demonstrated the existence of a dispute affecting land.
3. The learned High Court Judge erred in entertaining the revision application in the absence of exceptional circumstances warranting revisionary intervention.
4. The learned High Court Judge erred in holding that the disputed roadway had not been sufficiently identified.
5. The learned High Court Judge failed to appreciate that the Magistrate had correctly exercised jurisdiction under the PCP Act.

Analysis

The PCP Act confers upon the Primary Court a special and limited jurisdiction intended to preserve public peace and maintain the status quo pending the resolution of proprietary disputes before the appropriate civil forum. Proceedings under sections 66 and 69 are preventive and provisional in nature. They are not intended to finally adjudicate title, ownership, servitudes or other civil rights.

It is well settled that before jurisdiction may properly be exercised under section 66, the material before Court must disclose not merely a dispute affecting land but also a breach of the peace, a threatened breach of the peace, or circumstances from which such likelihood may reasonably be inferred.

The learned High Court Judge appears to have been persuaded that the learned Magistrate failed to properly identify and record the jurisdictional basis upon which the proceedings were entertained. The High Court judgment, as reflected in the submissions before us, indicates that the learned Judge considered the material insufficient to establish the existence of a breach of the peace or an imminent threat thereof and further observed that the learned Magistrate had not adequately recorded such satisfaction at the stage of assuming jurisdiction.

A further matter of significance is the nature of the relief granted by the learned Magistrate. The order effectively restrained the Respondent from obstructing the roadway. The Respondent has consistently maintained that such relief amounted to relief in the nature of an injunction. The PCP Act does not confer upon a Primary Court a general jurisdiction to issue injunctive relief. The Court's powers are confined to those expressly conferred by statute and must be exercised strictly within the statutory framework.

The record also reveals that a substantial controversy existed regarding the entitlement claimed by the Appellant to use the disputed roadway. The Respondent maintained that Lot 15 depicted and described in Plan No. 1874/90 made by Licensed Surveyor W.J.M.G. Dias (annexed as P7 to the High Court revision application), constituted a roadway reserved for the benefit of specified allotments and that the Appellant had failed to establish any legal entitlement to use the same. The dispute therefore extended beyond a mere question of present user and entered the realm of entitlement and servitudinal rights.

In the course of his oral submissions, it was the contention of learned Counsel for the Appellant that, according to the schedule to Deed No. 1188 dated 24.10.2013, attested by Notary Public Sasikala Wanigasundara (annexed to the High Court revision application as P6), under which the Respondent derived title to the land presently occupied by him, namely Lot 11 depicted in Plan No. 1874/90 and that Lot 15 depicted in the same plan is described as only an access roadway. Learned Counsel accordingly submitted that the Respondent's entitlement in respect of Lot 15 is confined to a right of use for the purpose of ingress and egress to Lot 11 and that no ownership rights over Lot 15 were conveyed to the Respondent under the said deed.

However, upon a consideration of the aforesaid Plan No. 1874/90 and Plan No. 9302 prepared by Licensed Surveyor Nandana Seneviratna, both of which have been relied upon by the Appellant, it appears that the portion of the roadway material to the present dispute is a stretch of roadway extending beyond the portion depicted as Lot 15.

While section 69 of the PCP Act empowers a Primary Court to make orders relating to rights of way, it must be borne in mind that proceedings under section 69 of the PCP Act are not designed to finally adjudicate upon competing claims of title or servitude. The function of the Primary Court is confined to making such orders as are contemplated by the statute upon the material placed before it. However, the party invoking that jurisdiction must place before Court sufficient material to disclose a *prima facie* basis for entitlement to the right claimed.

The learned High Court Judge further observed that the Magistrate had effectively granted relief not specifically sought and had treated the Appellant as being entitled to use a particular portion of land identified as Lot 15 of Plan No. 1874/93 without adequate material establishing that entitlement.

It is also necessary to bear in mind the nature of revisionary jurisdiction. Revision is not intended to function as a further appeal. However, where a subordinate court proceeds upon a misconception of its statutory powers, grants relief beyond the scope of its jurisdiction, fails to identify the jurisdictional facts required by statute, or reaches a determination unsupported by the material before it, revisionary intervention becomes available.

Having considered the grounds urged by the Appellant and the matters identified by the learned High Court Judge, I am unable to conclude that the learned High Court Judge exceeded the proper limits of revisionary jurisdiction. The issues identified by the learned High Court Judge went directly to the existence of jurisdictional facts and the scope of the powers exercisable under sections 66 and 69 of the PCP Act.

In those circumstances, the intervention of the learned High Court Judge was directed not at substituting his own view of the facts, but at examining whether the learned Magistrate had properly exercised the statutory jurisdiction vested in that Court and had acted within the limits of the powers conferred by the PCP Act.

Conclusion

For the foregoing reasons, I find no basis upon which this Court may interfere with the judgment dated 06.04.2018 of the learned High Court Judge of the Provincial High Court of Negombo in HCRA No. 324/2017.

Accordingly, the appeal is dismissed Subject to cost fixed at Rs. 50,000/- to be paid by the Appellant to Court.

Judge of the Court of Appeal

K.M.S. Dissanayake, J.

I agree

Judge of the Court of Appeal